

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Edward Tsigel	Team: Squad #16	CCRB Case #: 202201555	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 01/23/2022 9:45 PM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 7/23/2023	Precinct: 46
Date/Time CV Reported Thu, 03/10/2022 8:09 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 03/10/2022 8:09 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Joshua Jiminez	06074	963583	046 PCT
2. PO Peter Aguilar	16666	971302	046 PCT
3. PO Erika Gonzalez	12344	970554	046 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Victor Paredes	27036	967241	046 PCT
2. PO Stephanie Rodriguez	04607	965848	046 PCT
3. SGT William Granacher	01012	934956	046 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Joshua Jiminez	Abuse: Police Officer Joshua Jiminez stopped § 87(2)(b)	A . Substantiated
B . PO Erika Gonzalez	Abuse: Police Officer Erika Gonzalez stopped § 87(2)(b)	B . Substantiated
C . PO Peter Aguilar	Abuse: Police Officer Peter Aguilar stopped § 87(2)(b)	C . Substantiated
D . PO Joshua Jiminez	Abuse: Police Officer Joshua Jiminez frisked § 87(2)(b)	D . Substantiated
E . PO Peter Aguilar	Abuse: Police Officer Peter Aguilar frisked § 87(2)(b)	E . Substantiated
F . PO Peter Aguilar	Abuse: Police Officer Peter Aguilar searched § 87(2)(b)	F . Substantiated
G . PO Joshua Jiminez	Abuse: Police Officer Joshua Jiminez searched § 87(2)(b)	G . Unfounded
H . PO Erika Gonzalez	Force: Police Officer Erika Gonzalez used physical force against § 87(2)(b)	H . Unfounded
I . PO Peter Aguilar	Force: Police Officer Peter Aguilar used physical force against § 87(2)(b)	I . Unfounded
J . PO Erika Gonzalez	Force: Police Officer Erika Gonzalez hit § 87(2)(b) against an object.	J . Unfounded
K . PO Peter Aguilar	Force: Police Officer Peter Aguilar hit § 87(2)(b) against an object.	K . Unfounded
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On March 10, 2022, § 87(2)(b) filed this complaint on the CCRB website.

On January 23, 2022, at 9:45 PM, Police Officer Joshua Jimenez, Police Officer Erika Gonzalez, and Police Officer Peter Aguilar, all of the 46th Precinct, stopped § 87(2)(b) in front of 55 East 176th Street in the Bronx (**Allegations A to C – Abuse of Authority – Substantiated**). PO Jimenez frisked § 87(2)(b) and PO Aguilar frisked and searched § 87(2)(b) (**Allegations D to F – Abuse of Authority – Substantiated**). PO Jimenez allegedly searched § 87(2)(b) (**Allegation G – Abuse of Authority – Unfounded**). PO Gonzalez and PO Aguilar allegedly violently grabbed § 87(2)(b) arms, squeezed them tightly, and pushed him against metal bars of scaffolding (**Allegations H to K – Force – Unfounded**). The officers let § 87(2)(b) go and left the location.

§ 87(2)(g), § 87(4-b)

This case was originally assigned to Investigator Erica Jung and was reassigned to Investigator Edward Tsigel on August 31, 2022, upon her departure from the CCRB.

There was no arrest made or summons issued as a result of this incident.

The CCRB received six Body Worn Camera (BWC) videos of this incident (BR 09-14).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Joshua Jimenez stopped § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Erika Gonzalez stopped § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Peter Aguilar stopped § 87(2)(b)

It is undisputed that on January 23, 2022, at 9:40 PM, § 87(2)(b) was assaulted by an unknown male individual at § 87(2)(b) restaurant at § 87(2)(b) in the Bronx (BR 01). § 87(2)(b) called 911 (BR 02) and reported that an attacker broke his mouth with a bat. § 87(2)(b) stated that the attacker was a cook at the restaurant and described him as a Dominican male, who was around 45 years old, 130 pounds, was wearing an earth-colored jacket and blue pants. § 87(2)(b) spoke to the 911 operator in Spanish and the 911 call (BR 02) was translated by the CCRB (BR 03). The 911 dispatch radioed (BR 04) over to PO Jimenez, PO Gonzalez, and PO Aguilar, that there was an assault in progress and that a Hispanic male assaulted and injured an individual with a bat. 911 dispatch described the attacker as being around 45 years old, and was wearing a brown jacket and blue pants at East 176th Street and Jerome Avenue.

The event (BR 01) is consistent with the 911 call, reported assault, location, and description of the suspect mentioned above.

PO Jimenez (BR 05), PO Gonzalez (BR 06), and PO Aguilar (BR 07) all stated that at the time of this incident, PO Jimenez was the field training officer for PO Gonzalez and PO Aguilar. PO Jimenez and PO Aguilar stated that they could not speak nor understand Spanish and PO Gonzalez stated that she was fluent in Spanish. At 9:45 PM, they all arrived at the restaurant, and PO Gonzalez spoke to § 87(2)(b) in Spanish in front of § 87(2)(b) restaurant. § 87(2)(b) pointed down the block on E 176th Street and stated that the perpetrator was there. PO Jimenez, PO Gonzalez, and PO Aguilar all stated that they saw two men halfway down the block, in front of 17 E 176th Street, and § 87(2)(b) was standing further down the block past the two men, in front of 55 E 176th Street.

In his CCRB testimony, § 87(2)(b) (BR 08) stated he was exercising under the scaffolding in front of 55 East 176th Street. § 87(2)(b) is a 42-year-old Black male who is 5'4" tall, 173 pounds with short black hair, and brown eyes. He stated that he was wearing a white tank top, a blue t-shirt, a grey sweater, grey jogging pants, and white or black/green Nike sneakers

and had a grey and black backpack next to him on the ground. The backpack had a cellphone, house keys, an empty lunch box, a charger, some legal documents, tissue paper, a mask, small comic books, and a pen. § 87(2)(b) did not have anything in his pockets and was not holding anything in his hands. While § 87(2)(b) was exercising under the scaffold, he did not speak to anyone. He stated that he did not speak to or interact with anyone on the street before the officers stopped him.

It is undisputed that PO Jiminez (BR 05), PO Gonzalez (BR 06), and PO Aguilar (BR 07), walked down the block, past the two men, approached § 87(2)(b) (BR 08), stopped him, told him to put his hands up and handcuffed him. § 87(2)(b) was compliant with the officers' commands the entire time and did not resist them in any way. § 87(2)(b) was detained while PO Jiminez walked back up the block. Shortly after, PO Jiminez returned, uncuffed § 87(2)(b) and told him that he was free to go. After PO Jiminez handed him a business card and the officers provided their information to him, they left the scene.

At 1:05 of PO Jiminez's BWC video (BR 09), the officers arrive at the restaurant. From 1:05 to 1:30, PO Gonzalez speaks to § 87(2)(b) in Spanish. The CCRB translated the conversation from Spanish (BR 15). § 87(2)(b) points down the block and says, "The guy attacked me. That one, who is right there, with the scooter." PO Gonzalez asks, "With the scooter?" § 87(2)(b) says, "Yes, that one over there. Who is standing with the scooter." PO Gonzalez asks, "The one who has the bag?" § 87(2)(b) says, "Yes, the one who has the bag." PO Gonzalez does not translate this conversation to PO Jiminez or PO Aguilar. At 1:20, PO Jiminez asks, "The guy right there?" No one responds to PO Jiminez. At 1:22, PO Jiminez says, "Okay." At 1:27, PO Jiminez points up the block and says, "It's this guy up here." At 1:30, the officers begin to walk down the block. PO Aguilar walks in front, followed by PO Jiminez and then PO Aguilar. PO Aguilar asks PO Jiminez what the perpetrator is wearing. PO Jiminez says, "I can't tell." PO Gonzalez says, "The description said brown and blue" and PO Jiminez responds, "Yea." As they approach the two males, PO Gonzalez says "Right here, right? This one, right?" PO Jiminez responds, "This guy, up there," and points past the two men and toward § 87(2)(b). One of the two men is seen with a bag and a scooter, however due to poor lighting, the color of his clothing cannot be seen. The officers walk past the two men and approach § 87(2)(b). Between 2:15 and 2:40, PO Jiminez tells § 87(2)(b) to put his hands up, the officers approach him, and PO Jiminez and PO Gonzalez handcuff him. § 87(2)(b) is wearing a dark grey sweater, and light grey pants. At a later point during the stop, at 4:00, PO Jiminez walks back to where the officers originally spoke to § 87(2)(b) and brings him to § 87(2)(b). At 5:08, § 87(2)(b) speaks in Spanish, however it is unknown what he says. At 5:15, § 87(2)(b) tells all of the officers, "My friends, no, no." PO Jiminez immediately approaches § 87(2)(b) and tells PO Gonzalez to uncuff him.

All other BWC footage (BR 10-14) is consistent with PO Jiminez's BWC video. PO Jiminez (BR 05), stated that when PO Gonzalez spoke to § 87(2)(b) pointed up the block and said, "That's him." PO Gonzalez did not translate any details from her conversation with § 87(2)(b) to PO Jiminez or PO Aguilar. PO Jiminez stated that § 87(2)(b) did not provide a description of the perpetrator, however it is unclear when or how he learned that. PO Jiminez did not know which of the three individuals, including § 87(2)(b) were the perpetrator that § 87(2)(b) pointed out. As they walked down the block towards the two men, PO Jiminez did not hear § 87(2)(b) call out to the officers to stop or say that one of the two men were the perpetrators. Additionally, PO Jiminez stated that the two men did not look like they were involved because they were just having a conversation on the street. Therefore, PO Jiminez assumed that neither of the two men were the perpetrators, dismissed them as suspects, and continued walking past them and towards § 87(2)(b). PO Jiminez decided to stop § 87(2)(b) because he believed that he was the perpetrator. He believed § 87(2)(b) was the perpetrator because he was the only other individual on the block, he was removing items out of his bag, looked disheveled, and looked like he was sweating. He described § 87(2)(b)

§ 87(2)(b) as a short Black male wearing a blue sweater and black pants, however it is unclear at which point he was able to fully see those details. There were no other reasons why he stopped § 87(2)(b). At a later time after this incident, PO Gonzalez spoke to § 87(2)(b) in Spanish about the perpetrator. From that conversation, PO Gonzalez learned that one of the two men that the officers initially passed was the perpetrator. PO Gonzalez conveyed that information to PO Jiminez. PO Jiminez stated that one of the males which they had passed was a slim Hispanic male with a scooter and was wearing all black with a brown jacket, who matched the description of the perpetrator that was provided over the initial radio call. He did not realize that the male matched the description at the time of this incident, and only realized that after watching his BWC video prior to his interview.

PO Gonzalez (BR 06) stated that when she spoke to § 87(2)(b) he said, "That is the guy who assaulted me. He hit me in my face," and pointed in the direction of 176th Street. § 87(2)(b) told PO Gonzalez that the male who assaulted him had a scooter. § 87(2)(b) did not provide a description of the perpetrator during the conversation. As they walked down the block, PO Gonzalez saw that one of the two men had a scooter with him. She did not pay attention to what the male looked like or what he was wearing. She asked PO Jiminez if it was him, and he said no. She believed that PO Jiminez may have understood something that she did not. She believed that she may have misunderstood § 87(2)(b) and that he may have meant that the perpetrator was past the male with the scooter. PO Gonzalez did not provide any reason as to why she could have misunderstood § 87(2)(b). Additionally, PO Gonzalez expected that § 87(2)(b) would call out to the officers to stop or that one of the two men were the perpetrators; however, he did not call out to them and thus she did not believe the male with the scooter was the perpetrator. The officers continued walking past the two men and made a group decision to stop § 87(2)(b) because they believed he was the perpetrator. They believed he was the perpetrator because he was the only person on the block, other than the two men, and no other reason. She described § 87(2)(b) as a dark skin male who was heavy-set and did not have a scooter with him.

PO Aguilar stated (BR 07) that there was no description of the perpetrator provided over the radio run. When PO Gonzalez spoke to § 87(2)(b) pointed up the block and said, "That's the man that hit me." PO Aguilar stated that § 87(2)(b) did not provide a description of the perpetrator; however, it is unclear when or how he learned that. As they walked down the block towards two men, PO Aguilar turned around and saw § 87(2)(b) pointing down the block. PO Aguilar believed that § 87(2)(b) was trying to tell him that the officers need to walk further towards § 87(2)(b). § 87(2)(b) did not call out to the officers to stop or that one of the two men were the perpetrators. PO Aguilar believed that a reasonable person would have notified the officers to stop and that they were near the perpetrator once they saw the officers approach them. Because § 87(2)(b) did not tell the officers anything as they approached and passed the two men, PO Aguilar did not believe that either of the two men were the perpetrators. The officers made a group decision to stop § 87(2)(b) because they believed he was the perpetrator. They believed § 87(2)(b) was the perpetrator because § 87(2)(b) was pointing down the block and because he was the only other person on the block besides the two men. PO Aguilar believed that he was listening to music and dancing. He described § 87(2)(b) as a 40-year-old Black male, who was approximately 5'7" tall, was wearing a greyish green sweater, was holding his jacket in his hand, and had bags around him. He did not remember the color of § 87(2)(b) jacket.

The stop report (BR 16), prepared by PO Jiminez, states that the radio run had a description of a slim Hispanic male wearing a brown jacket and blue pants who assaulted § 87(2)(b). § 87(2)(b) pointed § 87(2)(b) out and the officers approached him and stopped him. He was wearing a grey sweatshirt and black pants. They detained § 87(2)(b) to conduct a show up. § 87(2)(b) told them that he was not the perpetrator. The officers explained the reason for the stop, provided their information, and provided a business card.

People v. De Bour, 40 N.Y.2d 210 (BR 17) allows an officer to forcibly stop and detain a person if the officer has reasonable suspicion that the person has committed, is committing or is about to commit a felony or misdemeanor. Reasonable suspicion exists when the information known to the member of the service would make an ordinarily prudent and cautious police officer under the circumstances believes that a felony or Penal Law misdemeanor has been, is being or is about to be committed. The officer must have a particularized and objective basis for suspecting the person stopped of the criminal conduct. The officer must be able to articulate specific facts establishing justification for the stop; hunches or gut feelings are not sufficient.

PO Jiminez, PO Gonzalez, and PO Aguilar received a detailed description of the perpetrator over the radio. Upon arriving to the scene, they all failed to take the necessary steps to learn and share critical information about the perpetrator from the conversation between PO Gonzalez and § 87(2)(b). Specifically, the crucial information PO Gonzalez received from § 87(2)(b) regarding the perpetrator holding a bag and had a scooter. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A to C be Substantiated.**

Allegation (D) Abuse of Authority: Police Officer Joshua Jiminez frisked § 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Peter Aguilar frisked § 87(2)(b)

Allegation (F) Abuse of Authority: Police Officer Peter Aguilar searched § 87(2)(b)

Allegation (G) Abuse of Authority: Police Officer Joshua Jiminez searched § 87(2)(b)

§ 87(2)(b) (BR 08) stated that once he was stopped by the officers, PO Jiminez patted him down from his neck to his feet, entered his pant pockets, and placed his hands inside his socks.

Between 2:40 and 4:05 of PO Jiminez's BWC video (BR 09), PO Jiminez frisks § 87(2)(b) person on his sweater, waistband, and pants. PO Jiminez asks him whether the bag next to him is his and he confirms that it is. PO Jiminez asks § 87(2)(b) whether he got into an altercation with anybody and he does not respond. PO Jiminez picks up § 87(2)(b) jacket and bag off the ground and pats it down. PO Jiminez does not enter the bag or any pockets at any point. At 3:40, PO Aguilar picks up another one of § 87(2)(b) jackets off the ground, pats it down, enters one of the pockets, pulls out a mask and a paper, and puts them back in the pocket. There was no contraband found as a result of the frisks and search. PO Jiminez tells PO Gonzalez and PO Aguilar to stay with § 87(2)(b) while he leaves to get § 87(2)(b) for a show up.

PO Jiminez (BR 05) stated that after handcuffing § 87(2)(b) he patted him down on his entire body and patted down his backpack to make sure he did not have any weapons on him or anything that would hurt the officers. He believed that § 87(2)(b) could have had a weapon on him because he was mumbling, not making any sense, and because he was upset when

the officers asked him for information. There was no other reason why he believed that § 87(2)(b) could have had a weapon. He did not see any bulges on § 87(2)(b) or on his bag or anything that was indicative of a weapon. He did not request or obtain consent from § 87(2)(b) to frisk him and § 87(2)(b) did not voluntarily provide consent to be frisked. PO Jiminez denied that he entered or searched any of § 87(2)(b) pockets or his bag.

PO Aguilar (BR 07) stated that he patted down § 87(2)(b) jacket and entered his jacket pockets to check if it had any weapons in it and for the officers' safety. There were no other reasons why he frisked or searched § 87(2)(b). PO Aguilar did not have any reason to believe that § 87(2)(b) was armed with any weapon or firearm. He did not see any bulges on § 87(2)(b) or his jacket indicative of a weapon or firearm. He did not request or obtain consent from § 87(2)(b) to frisk or search him and § 87(2)(b) did not voluntarily provide consent to be frisked or searched.

People v. De Bour, 40 N.Y.2d 210 (BR 17) states that during a stop, if a police officer develops a reasonable suspicion that a person is armed and dangerous, the officer may frisk the person for a deadly weapon. Reasonable suspicion that a person is armed and dangerous may arise from the officer's observations or the facts and circumstances of the encounter. The purpose of the frisk is to ensure the safety of the officer and not to locate evidence of a crime, such as drugs. An officer may not frisk a person's bag or other item of personal property unless the officer has reasonable suspicion to believe that the person is armed and dangerous and that the bag or item of personal property could contain a weapon and is within the person's reach. If a person does not consent to a search, you cannot conduct a search.

In order for an officer to frisk or search an individual, they must have reasonable suspicion that the individual is armed and dangerous and can only do so to look for a deadly weapon. § 87(2)(g)

§ 87(2)(b) neither of them requested or obtained consent to frisk or search § 87(2)(b). While § 87(2)(b) stated that he was assaulted by an individual with a bat during his 911 call (as mentioned in Allegations A to C), § 87(2)(g)

§ 87(2)(b) was already handcuffed at the time PO Jiminez frisked and PO Aguilar frisked and searched § 87(2)(b) § 87(2)(g)

It is therefore recommended that **Allegations D to F** be **Substantiated**.

§ 87(2)(g)

It is therefore recommended that **Allegation G** be **Unfounded**.

Allegation (H) Force: Police Officer Erika Gonzalez used physical force against § 87(2)(b)

Allegation (I) Force: Police Officer Peter Aguilar used physical force against § 87(2)(b)

Allegation (J) Force: Police Officer Erika Gonzalez hit § 87(2)(b) against an object.

Allegation (K) Force: Police Officer Peter Aguilar hit § 87(2)(b) against an object.

§ 87(2)(b) (BR 08) also stated that PO Gonzalez and PO Aguilar violently

§ 87(2)(b)

- Police Officer Joshua Jimenez has been a member-of-service for five years and has been a subject in six CCRB complaints and thirteen allegations, of which one was substantiated:
 - 202003712 involved substantiated allegations of force against PO Jimenez. The Board recommended command discipline and the NYPD imposed no penalty.
- Police Officer Erika Gonzalez has been a member-of-service for two years and this is the first CCRB complaint to which she has been a subject.
- Police Officer Peter Aguilar has been a member-of-service for one year and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming pain and suffering, psychological harm, interference of his life, pain of going through claim process, general life inconvenience and is seeking \$100,000 as redress (BR 21). There is no 50H hearing scheduled.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 16

Investigator:	<u>Inv. Tsigel</u>	<u>Investigator Edward Tsigel</u>	<u>03/03/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Patrick Yu</u>	<u>IM Patrick Yu</u>	<u>03/06/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date